Annexure B – Commercial Terms & Conditions

PRICE BASIS
The above prices are net discounted prices Ex-Works i.e. NOIDA, Uttar Pradesh, INDIA

PAYMENT TERMS
Supply:-
Advance 50% along with Purchase Order
Balance 50% against readiness of material (before dispatch)
Or
100% against Irrevocable Letter of Credit for 30 Days

Installation:-
Advance 50% along with Purchase Order or Start of Work
Balance 50% after successful handing over within 15 Days
Client is required to adhere to the Terms & Conditions proposed in the offer. For any delay in payments, Interest @ 24% per annum shall be charged on the due amount.

DELIVERY TERMS
Ordered Product(s) shall be ready for supply within 1-2 weeks (ex-stock) / 8-12 Weeks (import) from the date of receipt of technically & commercially acceptable purchase order along with advance.

Factory acceptance testing (FAT), if applicable should be mutually agreed in advance. All FAT related expenses shall be in the scope of Client.

All the delivery dates given by NAPL shall be deemed as indicative, not binding and are expressed in working days. In any event of late delivery, the client shall not be entitled to cancel the contract or to any compensation for damages of whatever nature.

TAXES
GST will be charged extra @ 18% on both Supply & Installation.
Taxes and Duties prevailing at the time of dispatch will be applicable.
Taxation is subject to change as per government notification.

VALIDITY
Valid for a period of 30 days from the date of our offer.

FREIGHT CHARGES
Shipment terms are EX-Works NOIDA, Uttar Pradesh – 201301, INDIA
Freight will be charged extra (at actuals) / Client Pick-Up / Applicable Courier Chagres
Client should clearly mention the same in the Purchase Order. By default, freight charges will be added in the invoice. No reversal or adjustment will be allowed post invoice generation.
Delay in pickup of materials after confirmation of readiness will attract demurrages.

WARRANTY
Product warranty is 12 (Twelve) months from the Date of Invoice.
Warranty can be extended. Terms & Conditions Apply
Onsite warranty will be applicable only if agreed by NAPL in writing
Liability limited to rectification of equipment subject to cause of failure attributable to manufacturing defects only.
Liability for replacement of parts or repairs carried out by NAPL does not extend the original warranty period and does not initiate a new warranty period for the repaired or replaced part.
Repaired or replaced part will be owned by NAPL.
NAPL shall not be liable for special and consequential damages of the client including, without limitation, loss of profits and indirect damages.

Client shall send the part to be repaired or replaced, free of charge, and NAPL shall examine said part to determine whether it is defective and whether the manufacturer is responsible for the defect; in which case only NAPL shall repair or replace the part, in its sole discretion, and shall send the repaired or replacement part to the Client who shall bear the cost of transportation and installation only.

Warranty void under the following conditions:

- Θ Payment against supply of material not done as per agreed Terms & Conditions
- Θ Damage due to voltage fluctuations
- Θ Improper installation, as per installation manual
- Θ Tampering or wrong connections / terminations
- Θ Raw power directly to the machine. Stabilized power supply or UPS is recommended for all NAPL/FAAC products
- Θ Work not carried out as per instruction & installation manual
- Θ Use product for the purpose other than what it is intended for
- Θ Damage caused due to negligence / mishandling / accident/ riot / natural calamity / act of God / defects caused by chemical agents or atmospheric and / or natural phenomena in general etc.
- Θ Unauthorized repair or use of accessories other than NAPL (or OEM) recommended spares and accessories.

Visit Charges during warranty period:

- Θ On sole discretion of NAPL
- Θ Installation not done by NAPL or authorized installation partner
- Θ Accidental Cases
- Θ Supervise installation and commissioning of product
- Θ Extended warranty period

CIVIL & ELECTRICAL WORKS

All civil & electrical related works, including supplies, will be in the scope of client or end-user, unless mentioned otherwise in writing by NAPL

Necessary planned support/supervision will be provided by NAPL for design of architecture & software whenever necessary.

The Client, moreover, acknowledges that the Products may be dangerous to persons or property when not installed or not used in strict compliance with the instructions for installation and use supplied by NAPL (or OEM) and with the safety requirements specified in the technical standards. NAPL (or OEM) expressly disclaims liability for any personal injury or property damage resulting from installation or use of the Products, other than in strict compliance with NAPL's (or OEM)written instructions with respect to installation and use, or from installation or use of the Products together with safety accessories or other Products not supplied by NAPL (or OEM), being understood that the maximum liability of NAPL's (or OEM) to the Client arising out of or in connection with the Product and based on a claim of breach or under the warranty, shall in no case exceed the price paid to NAPL's (or OEM) for the Product which gives rise to the claim and, therefore, in no event NAPL's (or OEM) shall not be liable also for special and consequential damages including, without limitation, loss of profits and indirect damages.

STORAGE & OFFLOADING

Offloading of material will be in the scope of client.
Locked, Secured & Accessible stores to be provided by client at Free of Cost.
Internal Site Movement (product & manpower) to be provided by the client free of cost, unless mentioned otherwise in writing
Safety & security of product is sole responsibility of client

FORCE MAJEURE

This agreement shall be subject to Force Majeure. The Force Majeure shall include the following:

A. War or hostilities.
B. Earthquake, Flood, Fire, Epidemic or other natural, physical disaster and acts of God.
C. Strike or lockout or other industrial action, by workers or employees of customer.

Neither employer nor the Engineering Contractor shall be considered in default for the performance of the obligations of either party under this Contract, if such performance is prevented or delayed because of any law, order, proclamation, regulation or ordnance o the Government or of any subdivision thereof or because of any act of God, or any other cause whether of similar nature beyond the reasonable control of the parties hereto.

TITLE

Title to the Products (or Solutions) shall pass to the client only upon payment in full of the sale price of the Products (or Solutions). In the event of default by the client, NAPL shall be entitled, without any formalities, including notice of default, to repossess all of the Products with respect to which title has not yet passed to the Client, wherever said Products may be; in addition, NAPL reserve the right to seek any other judicial remedies available to it in respect of the damages suffered.

TRAINING

The necessary product training shall be provided to the client at the time of handing over.

ORDER TO BE PLACED ON

Neptune Automatic Pvt Ltd,
A-12, 2nd Floor, Sector-59, Noida, Gautam Buddha Nagar, Uttar Pradesh, (INDIA)
Contact Number: 0120-4205900 / 4297900
E-Mail: enquiry@neptuneautomatic.com; rahul@neptuneautomatic.com
GSTIN: 09AAACF9142P2Z2

BANK DETAILS

Beneficiary Name:	NEPTUNE AUTOMATIC PVT LTD
Bank:	STANDARD CHARTERED BANK
Branch:	SECTOR-18, NOIDA-201301
Account Number (CURRENT):	53005098364
IFSC Code:	SCBL0036024

CUSTOMER SERVICE

Mobile Number – 9311123300 / 8010803000
Landline Number – (0120) 4205900 / 4297900 / 4212132
Email - customercare@neptuneautomatic.com